

Key Definitions and Disciplinary Actions

30-Day Letter: A letter that accompanies or contains the complaint against a licensee or registrant and serves as the initiation of the complaint process.

Assistant Attorney General (AAG): Each board is assigned at least one Assistant Attorney General to provide legal advice, represent the board in the prosecution of disciplinary matters and defend the board in litigation.

Burden of Proof: The necessity or duty of affirmatively proving a fact or facts in dispute on an issue raised between the parties in a case.

Colorado Open Meetings Law: Colorado Sunshine Law that mandates the formation of public policy is public business and may not be conducted in secret. If the board is an open meetings board, the board must conduct its business and deliberations in open session. Any time two or more board members gather and discuss board business, formulate policy or decide about formal action there must be posted legal notice of such a meeting, and if members of the public attend, they must be admitted.

Colorado Open Records Act (CORA): In the spirit of open government, CORA requires that public records be available to the public and open for inspection by any person at reasonable times, with certain exceptions.

Conflict of Interest: A real or potential incompatibility between one's private interests and one's public or fiduciary duties.

Conviction: A formal declaration that someone is guilty of a criminal offense, made by the verdict of a jury or the decision of a judge in a court of law.

Due Process: The rules and principles established through the legal system to enforce and protect the rights of the individual.

Executive Session: An exception to the general rule that the proceedings of a public governing body, such as a licensing board, are public business and should be conducted in a meeting which is open to the public, subject to very specific guidelines.

Hearing: A legal proceeding in which the parties to a dispute present evidence and make legal submissions to the adjudicator(s) so that they can make findings of fact and issue a judgment with respect to the issues submitted for determination.

Office Expedited Settlement (ESP) - The Division program that attempts to resolve disciplinary action imposed by the Division's boards through settlement as an alternative to referring the cases to the Office of the Attorney General for a formal hearing.

Office of Investigations (OI): The Division program that is responsible for the investigation of complaints filed with a program.

Office of Licensing (OL): The Division program that ensures that only qualified individuals and facilities are permitted to operate and practice in the regulated professions and occupations. It accomplishes that function by assessing whether applicants possess the statutorily mandated knowledge, skills, and abilities to practice professions and occupations through document review and verification.

Peer Assistance Provider: An agency that provides comprehensive case management to a wide range of professionals with substance use and mental health disorders affecting their ability to practice with reasonable skill and safety.

Policy: A statement that provides guidance as to how a statutory provision or rule will be implemented. While policy does not have the force of law, it is instructive of how the board interprets its statutes and rules regarding specific licensing and practice issues. Creation and revision of policies does not require the rulemaking process.

Practice Act: The organic statute that governs a particular profession or occupation. Typically enacted when the general assembly declares it to be in the interests of public health, safety, and welfare to enact laws regulating and controlling a particular profession or occupation.

Probable cause/grounds: Reasonable grounds for a belief in the existence of more evidence for, rather than against, the facts asserted in a complaint proceeding.

Quorum: The minimum number of members of a board, group or committee that are required to be in attendance for that group to be able to take official action.

Recuse: To disqualify or remove oneself as a judge or decision maker over a particular proceeding or matter because of one's actual or potential conflict of interest.

Rule: A statement that defines how a law will be implemented; it has the force of law. It is written by an administrative agency and adopted in accordance with the prescribed rulemaking process. Changes in Rule require stakeholder feedback and a final rulemaking hearing where the Board has a final chance to make changes and formally adopt.

Statute: A law that governs conduct within its scope. A bill passed by the legislature becomes a statute.

Statutory Authority: The boundaries of a regulatory body's lawful responsibility as defined by the statute that created it.

Board Actions and Discipline Options

Cease and Desist Order (CDO): For cases involving unlicensed practice or use of a protected title in violation of statute, a board can issue a cease-and-desist order. Respondents may appeal a CDO within 10 days. ALL cases of unlicensed practice that result in a CDO are referred to OI for follow up enforcement and are referred to law enforcement.

Deny Application/License: The process of refusing to grant a license to an applicant. The Board may deny an application when it finds the licensee does not meet the qualifications for the license. Some Boards may also deny reinstatement of licenses when they find substantial evidence constituting grounds for discipline or reinstate/grant a license with conditions (stipulation). The applicant can appeal a denial.

Dismissal - If the board determines that the respondent did not violate any statutes or rules or that there is insufficient evidence to substantiate a violation of statutes or rules, then the case is dismissed. If the board does not have jurisdiction over the person or facts that were the basis of the complaint, the complaint must be dismissed. If it is a clear situation of being outside the board's jurisdiction, board staff may dismiss the complaint administratively.

Dismiss with a Confidential Letter of Concern (LOC): If the board is concerned about the respondent's practice or conduct, but there is not a supportable violation or substantial evidence, the board may issue a confidential letter of concern to the respondent. The case is dismissed; however, the LOC remains on file with the board for five years from the date of issuance.

Fines (Board specific authority): Monetary assessment that may be imposed for specific violations of the practice act. Respective practice acts define parameters around issuing fines, including statutory authority, amounts, and situations.

Injunction: An order issued by a court requiring the recipient to cease activity. Typically issued after violation of a CDO but may be issued in lieu of a CDO for particularly egregious violations or danger to the public.

Interim Cessation of Practice Agreement (ICPA) - A voluntary, non-disciplinary agreement between the licensee and a board/program whereby the licensee agrees to cease practice on an interim basis.

Letter of Admonition (LOA) - If a board finds the respondent violated any rules or statutes, it can issue an LOA admonishing the respondent for his/her conduct. This is the lowest form of public discipline. This is a public disciplinary document and does not require signature by the respondent. The Respondent has 20 days to appeal an LOA.

Mental Status Examination (MSE): An assessment of a licensee's level of cognitive ability, appearance, emotional mood, and speech and thought patterns at the time of evaluation.

Refer to the Office of Investigations (OI): If the board needs additional information, then it can refer the case to OI to have an investigator interview witnesses, obtain records, obtain expert review, etc., and prepare a Report of Investigation (ROI) for board review. The Board should always consider the need for an expert review when making a referral to OI to save as much time as possible on the case and avoid a re-referral.

Refer to the Office of Expedited Settlement (ESP): ESP will attempt to settle a case on disciplinary terms defined by the Board (i.e.: stipulations). The Board should be clear in the violations alleged, the specific terms of the stipulations, and any settlement guidance (or discretion) permitted to settle the case. ESP will bring any counter offers to the Board for review.

Revocation of License: Requires referral to the OAG unless the respondent agrees to relinquish the license through the ESP referral.

Summary Suspension - When a board finds objective and reasonable grounds that a respondent is not safe to practice with reasonable skill and safety to patients and the public health, safety, and welfare imperatively requires emergency action or finds a willful violation of the practice act, the board can summarily suspend a respondent's credential and immediately remove the respondent from practice. The respondent's case is referred to the OAG for filing of the Notice of Charges on an expedited basis as the respondent is entitled to a prompt post-deprivation hearing.

Stipulation (Stip) - This is an order from the Board for a licensee to perform some action. It is a public document and is disciplinary. Cases where the Board seeks a Stipulation would be referred for discipline to the Office of Expedited Settlement.

Table: The case is “stayed” pending the receipt of additional information from the complainant, the respondent, board staff or an outside entity such as a mental status evaluator. Once the information is received, the case will be re-presented to the Board for review.